Submission to the Joint Standing Committee on Electoral Matters

Specifically to inquire into and report on all aspects of the conduct of the 2025 federal election and related matters, including consideration of the following:

- *assessment and review of the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials;*
- *potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour;*
- *the suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements; and*
- *the suitability of the current authorisation framework and requirements, having regard to the evolution of communication methods and technology.*

The Special Minister of State has also asked the Committee to consider the interaction with the following:

- *the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election;*
- *reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic; and*
- *the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate.*

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Matters that form part of the reference for the Inquiry and related matters

The Committee has outlined a number of concerns they have with the 2025 election, both operationally and structurally. I have attempted to address these issues and where possible offer options.

Anti-social conduct and intimidating behaviour

One of the reasons for the steady increase in pre-polling has between the behaviour by political parties, supporters and interest groups over the years. It has created a climate which is often not conducive to positive participation.

Various governments have attempted to manage this, from the current "free-for-all" for Federal elections to the Electoral Act 2004[1] in Tasmania.

Specifically :-

s.177 ***Restrictions within 100 metres of a polling place***

A person must not, within 100 metres of, or within, a polling place which is open for polling –

(a) canvass for votes; or

(b) solicit the vote of an elector; or

(c) induce or attempt to induce an elector not to vote for a particular candidate or particular candidates.

The TEC does not permit any election advertising to be located within or placed on the periphery of any site it has leased for election purposes.

s.198 ***Polling day restrictions on electoral matter***

A person must not, on the polling day fixed for an election, or on a day to which the polling for an election has been adjourned, distribute any advertisement, how to vote card, handbill, pamphlet, poster or notice containing any electoral matter; and

s.120 **Persons entitled to be present at polling place or place where ballot material is sorted, checked or counted**

(1) Except as provided in subsection (2) , the only persons who are entitled to be present at a polling place or other place where ballot material is sorted, checked or counted are –

(a) the election officials appointed to work at that place; and

(b) scrutineers appointed in accordance with section 104 ; and

(c) any other person authorised by the Commissioner, the returning officer for the division or the election official in charge of that place.

(2) Electors who are voting or are about to vote are entitled to be present at a polling place.

As an intermediate measure I suggest limiting booth workers to only those appointed by a candidate and reducing the number to a maximum of two per entry point. This would mirror the requirements for scrutineers at the count of the ballot. Election candidates would not be counted for the purposes of this limit. Reducing the points of friction by reducing the number of partisan contacts would provide a more pleasant environment for voters.

This has the added advantage of introducing equity for candidates who do not have the resources available to elected Members, Senators or Party candidates. The other change would be to create a zone – starting at the six metre boundary and ending for 100 metres – where campaigning could only take place with appointed representatives of candidates.

Ability of the AEC to manage behaviour

I acknowledge that the AEC has better things to do during an election than babysit unruly participants. By law the authority of the AEC stops at the boundary of the declared voting area. However any disruption that create issues with voter access directly impacts on the ability of the AEC to deliver fair and equitable voting.

[1] *https://www.legislation.tas.gov.au/view/html/inforce/current/act-2004-051#GS120@EN*

I suggest that each State or Territory should reach an agreement with the AEC to recognise the role of the AEC as a complainant during the election period. I will note the specific legal environment for Queensland as the process will be different elsewhere.

Firstly the Returning Officer can request that the police attend the location and take a sworn statement, together with any evidence. Depending on the severity of the offences, the police can issue move-on notices or public nuisance offence notices.

Under the Police Powers and Responsibilities Act 2000[2], a police officer can, in particular circumstances, direct a person or group of people to move on or leave a public space. The direction can be given if the officer reasonably suspects the behaviour of the person or group is or has been:

- *causing anxiety to a person entering or leaving a place;*
- *interfering with trade or business at the place by unnecessarily obstructing, hindering or impeding someone entering or leaving the place;*
- *disorderly, indecent, offensive or threatening to someone entering, at or leaving the place;*
- *disrupting the peaceable and orderly conduct of any event, entertainment or gathering at the place.*

The direction can also be given if a person's presence is causing anxiety, interference or disruption. However, the direction cannot be given if it interferes with a person's right of peaceful assembly, unless the direction is reasonably necessary for public safety, public order, or to protect the rights and freedoms of other people.

Under the Summary Offences Act 2005[3] a person commits a public nuisance offence if the person behaves in —

- *a disorderly way; or*
- *an offensive way; or*
- *a threatening way; or*
- *a violent way; and*
- *the person's behaviour interferes, or is likely to interfere, with the peaceful passage through, or enjoyment of, a public place by a member of the public.*

The direction can require a person to leave a place, leave a stated part of a place, or move a stated distance in a stated direction from a place, within a stated time of up to 24 hours.

[2] *https://www.legislation.qld.gov.au/view/html/inforce/current/act-2000-005*
[3] *https://www.legislation.qld.gov.au/view/html/inforce/current/act-2005-004*

Improving universal voter access

I'd like to acknowledge the work the AEC has done in encouraging all Australians to register to vote. Following the 2022 JSCEM Inquiry that specifically addressed this topic the jump in enrolled voters should be recognised by the Committee and further examination of how to encourage the participation of those enrolled should be addressed.

I also note the inability of some Australians to distinguish between compulsory attendance and compulsory voting.

Polling booths and prepolling

Let's look at some of the common problems. For a start, once you get north of Noosa (or outside of Perth and Adelaide, or almost anywhere in the Northern Territory) polling booths are further away from each other. There's a greater likelihood that they will be cancelled if they can't be staffed and there have been strategic decisions that severely limited overseas polling places.

As a person with a disability I am very aware that accessible polling places in regional Queensland are very limited compared to the options I have in Brisbane. The same applies to pre-polling. Disability access should be the default for all polling places, with limited access being the exception.

When there are staff shortages that cause a polling booth to be cancelled it has a more marked impact in regional areas. Instead of driving an extra five minutes to another booth in Brisbane, the nearest booth in regional Queensland may be an hour or more away.

For this reason the AEC as a matter of policy should ensure remote booths are staffed first and urban booths filled after that.

Pre-polling has effectively led to an extension of the voting period from one polling day to up to 17 polling days. While there are requirements to satisfy eligibility to vote early, they are largely ignored on the ground and indeed encouraged by the AEC and political parties. The AEC submission[4] argues for the removal of all qualifying requirements and the question is not just whether we can put the genie back in the bottle, but whether we should. However, for the sake of consistency having pre-polling venues open one, two or three weeks before the election is confusing. I suggest that a universal start at two weeks prior is sufficient.

Western Australian time differences (and variances in South Australia, the Northern Territory and Daylight Savings changes) leads to a question of whether reporting of results may unduly influence those who have yet to vote. I believe there are two options – delay the reporting of results until voting in all states has concluded, or shift the times so that all states finish at the same instant.

Remote polling and declared institutions

The AEC does an exceptionally good job in reaching voters in remote areas, based on my experience with their work in Cape York. Their process with those in hospitals is also of a very high standard, especially given the circumstances of many patients and the fact that patients are likely to have different priorities than casting a vote.

Where it becomes problematic is with hospices and nursing homes in particular. The major issue is ensuring that enrolment records are kept up-to-date. Due to the constant movement of residents enrolment records are often not accurate – either because the resident is newly arrived or because it isn't a priority for the management of the facility. Having AEC staff attend each facility three months out from the anticipated date of an election announcement to perform a roll cleanse would fix most of the problems. It would also build awareness of the process for those residents and staff in the months prior to the election.

[4] *https://www.aph.gov.au/DocumentStore.ashx?id=fd00e156-a9c6-41d5-88a7-c59bc554c2ce&subId=779530*

Another problem arises around the issue of cognitive impairment. This issue really needs further discussion to achieve an acceptable outcome.[5]

Postal voting

Postal voting is where everything tends to fall down – and that's not an AEC problem, that's an Australia Post problem. The chances of applying for, receiving, completing and returning a postal ballot within the statutory timeframe in regional Australia is very slim. For remote areas with limited mail delivery it moves from unlikely to impossible, as does lodging a postal vote overseas. I do not believe that Australia Post is capable of fulfilling their electoral obligations for significant numbers of Australians outside the major metropolitan areas.

The AEC has raised the issue of third-party Postal Voting Applications. It is currently weaponised and is escalating in a way that is both expensive and time-consuming. This is almost exclusively the province of the ALP and LNP/CLP/Liberal parties, with sporadic investment by minor parties and special interest groups in targeted seats. This is an opportunity to conduct an armistice and remove third-party PVAs entirely, while still allowing candidates to contact voters and advise them of the process for postal voting.

As noted in the AEC submission the additional step of inserting a candidate between the voter and the AEC also introduces an inevitable delay and the potential for applications not to be lodged with the AEC in a timely manner.

Instead of excluding a laundry list of various PVA application sources, this Committee could simply recommend that only applications lodged through the AEC portal or on an official AEC printed application are permissible. One very simple way to achieve this is for the AEC to register the design of the PVA as a trademark and then refuse any modified applications.

Future developments

Over the years the Australian electoral system has evolved to meet changing needs to the point where it is one of the most reliable and transparent systems in the world. However it's obvious that our present process is quite clunky. As a matter of urgency I propose a review of the technology behind our elections.

Voters could enter a polling place, be electronically checked off the roll and then proceed to a random booth of their choice. A touch screen menu would guide them through a correctly completed vote, keeping the option of lodging an informal vote. At the end of the process a voting receipt would be printed for manual checking and be placed inside a ballot box.

Once the polling places have closed the indicative results would be almost instantaneous, excluding postal votes. Results within a set margin, or those challenged, could then be recounted using the printed ballots. A certain number of electorates could also be manually counted to reconcile any differences between electronic and printed ballots and ensure accuracy.

Given that we've just had almost instantaneous results for around 7.5 million Powerball entries, backed up by electronic and printed records across thousands of secure locations, it shouldn't be outside the reach of the AEC to do the same for voting.

[5] *https://pwd.org.au/reform-laws-that-stop-people-with-disability-from-voting/*

Authorisation of material

As we move towards an increasing post-truth world where facts are subjective and easily dismissed for the sake of personal narrative, it's important to recognise that there is no "your truth" or "my truth" only inconvenient facts. The rise of social media and AI is leading to a world where it's getting harder to recognise facts because the lies are so persuasive and the liars are becoming bolder.

Branding

There are a lot of confusing messages during an election campaign, both accidental and deliberate. I suggest that political parties and government bodies such as the AEC should be able to register exclusive branding, which means that certain colours, specific fonts outside the existing standard fonts, and images should be reserved to one political organisation only. Since most parties have "Style Manuals", I propose that the AEC allow parties and organisations to register a definitive colour, unique font (excluding the standard Windows and Apple fonts), logo and slogan. Colours can be selected within a range for RGB and PMS identifiers to allow for variations.

The same would apply for organisations such as the AEC, Medicare and other groups. It will then be an offence for candidates to use any of those elements without permission. For example, using the standard AEC purple or Medicare green or their logos in any material would be an offence.

Likeness rights

With the development of Artificial Intelligence, particularly with images, material produced can no longer be regarded as accurate. Instead of further trying to define AI, I would like to instead require that any image or likeness on any election material should include an authorisation from the subject of the image. This would almost instantly remove any opportunity for negative personal messaging as well as attempts to falsely represent a candidate.[6] There is already a precedent for this approach – Parliament's *Rules for media related activity in Parliament House and its precincts s5.11(a) and s5.12(c)* specifically prohibits the use of video and still photography for political party advertising or election campaigns.[7]

The trouble with fonts

I note that the AEC has quietly addressed one of my pet peeves – recognising that font sizes are not equivalent to the size of text and conflating the two can be incredibly frustrating. The introduction of the Authorisation Calculator[8] is a good first step towards providing some clarity on this issue.

Election advertising

While it is not within the role of the AEC to determine the truth or otherwise of electoral material, I believe that it does fall within their authority to collect, store and identify material proposed to be circulated during an election. Ideally all material designed to influence voters should be lodged with the AEC and receive an authorisation that indicates that it has been lodged. Temporary authorisation identification could be applied for that material produced contemporaneously, such as podcasts, and updated after release. Additionally any supporting documentation should be included to allow members of the public to easily identify the source of any claims.

In much the same way that documents have been lodged electronically with this Committee I suggest that it would bring a necessary amount of transparency to electoral material.

This authorisation should be included on the material as well as the metadata of digital media. Material that does not have the authorisation included can be easily identified and action can be taken to remove it. The AEC, backed by appropriate legislation, can issue an immediate take-down

[6] *https://www.austlii.edu.au/au/journals/CommsLawB/2001/4.pdf*
[7] *https://www.aph.gov.au/-/media/05_About_Parliament/MediaRules/Media_Rules_-_WEB.pdf?la=en&hash=0B3D28FD91AE611B98B21F04E6DA224C0BCAE02A*
[8] *https://www.aec.gov.au/About_AEC/Publications/backgrounders/files/authorisation-calculator-diagonal.pdf*

request that social media companies remove material, subject to penalties. The process would be similar to the existing Digital Millennium Copyright Act (DMCA)[9].

Actions for defamation and libel can be more easily progressed if the authors are identifiable and eventually this process will become self-policing.

How-to-vote (HTV) cards

The cost and ability to deliver how-to-vote cards is a significant barrier to entry for many candidates. I suggest that the AEC provide a standard one-piece print with all official HTVs inside each polling booth for easy voter reference.

The HTV for each candidate should be clearly displayed in a neutral format with the colour and logo for each candidate displayed. In order to mitigate any advantage from the ballot draw, the order of each HTV should be in reverse ballot order, so the candidate drawn first would have their HTV displayed last (from upper left position to lower right position). The print should be sufficiently large to be able to be read clearly.

Each HTV would be a simple duplication of the ballot paper with the recommended ballot paper order. This would mean that split preferences would not be possible OR would be done by random placement of a single option in each booth.

One other advantage of this is that it would almost entirely remove the impact of HTVs that either misrepresent the candidates preferred preference order or attempt to confuse voters.

The likely impact of this is that the number of voters who would refuse to take candidate HTVs outside the polling place would increase, reducing both cost and waste.

[9] *https://docs.github.com/en/site-policy/content-removal-policies/dmca-takedown-policy*

Funding reforms

The Electoral Legislation Amendment Bill Changes

My view on the *Electoral Legislation Amendment (Electoral Reform) Bill 2025* [10] is that if it was meant to be simple and transparent it wouldn't have run to 246 pages. The question of genuine electoral funding reform should acknowledge that fair legislation would start all electoral participants from the same position and not introduce carve-outs that provide an advantage to those debating the legislation.

But here we are.

In introducing the Bill Patrick Gorman MP said "*This bill seek[s] to remove the influence of big money in politics, ensuring that our electoral system remains a system we can all trust—trust that election results are not unfairly skewed by 'big money'; trust that elections are a contest of ideas, not bank balances; trust that we know who is funding election campaigns with more information about campaign financing provided before voting day.*"

Does the Bill as passed achieve those lofty goals?

There is an old adage that one should never stand between a politician and a bucket of money. Giving public money to political parties for administrative costs may reflect increased compliance costs, but are the number of elected Members and Senators the correct metric to be basing it on?

I'd suggest setting a compliance base amount for all political parties, and then a per capita amount based on the audited number of formal voting members. This is more reflective of the costs involved in actually running a political organisation and complying with the organisational demands. It also better represents wider community participation and the base from which elected members are drawn.

It is also still skewed by big money, because donations and support are provided by people and organisations that directly benefit from government decisions.

A pause to reflect

Let's briefly consider the purpose of electoral funding. There is an unspoken assumption that giving public money to candidates and organisations is a worthy endeavour. I'd like to challenge that.

In practical terms the amount required to run an election campaign has increased exponentially in recent years. In the 2019 election Corangamite became the first campaign where both major candidates spent more than one million dollars each.

The High Court decision in *Unions NSW v New South Wales [2013] HCA 58 (18 December 2013)*[11] comes perilously close to endorsing the view of the US Supreme Court in *Citizens United v. Federal Election Commission*[12] by recognising that organisations have an implied right of freedom of political speech. Because bad cases make bad law, the High Court made a determination which should have been applied solely to that case and not become a precedent.

I do not agree with that view - in a perfect world there would be a donation limit and donations could ONLY be made by individuals on the electoral roll. Since that would exclude contributions by companies, organisations and unions I am realistic enough to know that the chance of that passing would be precisely zero.

Professor Anne Twomey made very relevant comments on the High Court decision.

"What the Court did in Unions NSW was simply to tick the box saying that most communication about State political matters also influences Commonwealth political matters, without actually

[10] *https://parlinfo.aph.gov.au/parlInfo/download/legislation/bills/r7280_aspassed/toc_pdf/24146b01.pdf;fileType=application%2Fpdf*
[11] *https://www.austlii.edu.au/cgi-bin/viewdoc/au/cases/cth/HCA/2013/58.html*
[12] *https://www.brennancenter.org/our-work/research-reports/citizens-united-explained*

conducting any analysis as to how the particular law in issue in this case burdened the implied freedom of political communication in a way that had the potential to affect how people might vote at Commonwealth elections or referenda."

"If one takes s 96D, which prohibits the receipt of political donations from anyone other than enrolled voters, it is not a law that affects the content of political communications. Nor is it a law that regulates how political communications may be made. It only affects the resources that might be called upon to secure political communications."[13]

By all means introduce a cap, but make it applicable to everyone. Allow members and shareholders to "opt-out" of donations. Make those organisations that have had direct involvement with government decision-making ineligible to donate.

At the Annual General Meeting of the Wandoan Model Railway Club a motion was moved to donate $300 to their local Member in recognition of their assistance in the clubs successful grant application. Some members objected and a vote was called. Of the 100 members present 40 members voted not to donate anything, fifty members voted yes and 10 members voted to donate to another candidate.

The club donated $150 to their current Member of Parliament and $30 to the opposition candidate. As the value of the donation AND the value of the benefit are both below a specified amount the donation is not of a type to be excluded.

At the moment many states do not allow property developers and associated entities to donate, despite the fact that a) it's discriminatory as it applies a penalty to a group based on individual history; and b) it applies a penalty across multiple levels of government that can only derive a possible benefit from one. If we applied the same logic to recipients that we do to donors then sitting politicians would not be permitted to stand, based on convictions of the class.

I suggest that individuals and organisations that directly benefit from a government decision and their office-bearers not be permitted to donate during that term of government. Additionally groups whose sole reason for existing is to interact with government - principally lobbyists and some specialised legal and accounting firms - should be excluded entirely. Those businesses that take their license to operate directly from the Government, such as casinos, should also be added to the list.

Lowering the donation reporting limit to $100 – and not $1,000 – would not involve undue administrative overhead. One of the easiest ways of providing transparency is to put donations and expenditure through an independent third-party transaction account supervised by the AEC. That process would not be difficult and would force transparency by providing a template that would not allow the donation to proceed without all information being completed.

If the process were made live it would also get around the current issue of major donations being made in the last week of a campaign to avoid scrutiny.

One of the issues with the system as it works in Queensland State and Local Government elections is that candidate contributions to their own campaign are not required to be reported, allowing money to be funnelled through without oversight. In basic accounting terms the credits and debits don't match and the ECQ is not sure how to deal with it.

The definition of "Independent"

I'd also like to address the use of "Independent" as a brand and the inherent contradiction of a group of independents.

13 *https://www.gtcentre.unsw.edu.au/sites/gtcentre.unsw.edu.au/files/2014_con_law_conf_papers_anne_twomey_0.pdf*

What are the advantages in not being a formal party? Firstly, there is no requirement to have a minimum number of members or a formal constitution. Secondly there is no requirement to have a transparent, formal candidate selection process. So candidates can be funded and chosen (even without their active involvement)[14] by an individual, group or organisation.

Queensland has specific provisions to address this in Local Government elections and I suggest that the general principles could be implemented at the Federal level without much modification.[15]

Only candidates who are members of a registered group (or endorsed by a political party) can conduct group campaign activities. Group campaign activities include any of the following activities, carried out in an intentionally coordinated way by two or more candidates:

- *using a common platform to promote the election of the candidates (e.g. promoting the same political policies);*
- *using the same advertisements (e.g. pamphlets, billboards);*
- *using the same campaign slogans;*
- *using the same brands or images;*
- *using the same how-to-vote cards;*
- *participating in the same fundraising activities or events;*
- *sharing the same resources for election campaigns (other than volunteers); and/or*
- *sharing gifts or loans.*

I'd also suggest that the word "Independent" **only** be permitted for those not part of a group.

Public funding

The problem with most election funding is that it's either based on the last election or spending is allocated based on an incomplete prediction of the outcome. This also tends to favour incumbent parties and candidates. The question to whether to reward candidates on the number of votes they receive or to provide sufficient funding to overcome barriers to participation.

The return to candidates in the electorate of Bonner in the 2025 Federal Election was ALP - $132,575; LNP – $119,038; Greens - $41,695. The other five candidates failed to reach the 4 percent qualification for funding, so that's a rough total of $293,308. Adding in the same payment for the Senate would double that amount to $586,616. That's not entirely accurate but the final payments for the 2025 won't be available until 2026. That's a substantial amount of money, especially when Bonner is only one of 150 electorates.

While funding for the 2025 election has not been finalised yet, the total amount of public funding for the 2022 election was $75,876,944.40.[16]

While there is a requirement that public funding be based on actual expenditure, calculating the accuracy of numbers, especially for group campaigns, is flexible at best. That's because expenses can be reallocated between individual seats and campaigns in order to maximise the return.

I suggest that public funding cover the various basic, fixed expenses for all candidates. This would include standard how-to-vote cards, enough standard corflutes to place two on each polling and prepolling booth in the electorate and a small amount to cover either a standard newspaper advertisement or the same amount spent on digital media.

Senate candidates would be eligible for one corflute per booth entrance and an equivalent standard newspaper advertisement or social media spend. Senators from the same group would be able to print joint corflutes up to three times the standard size and a joint full-page ad or an equivalent social media spend. The AEC would be responsible for allocating those funds provided by the Federal Government and should be able to minimise the cost through the introduction of a tender process.

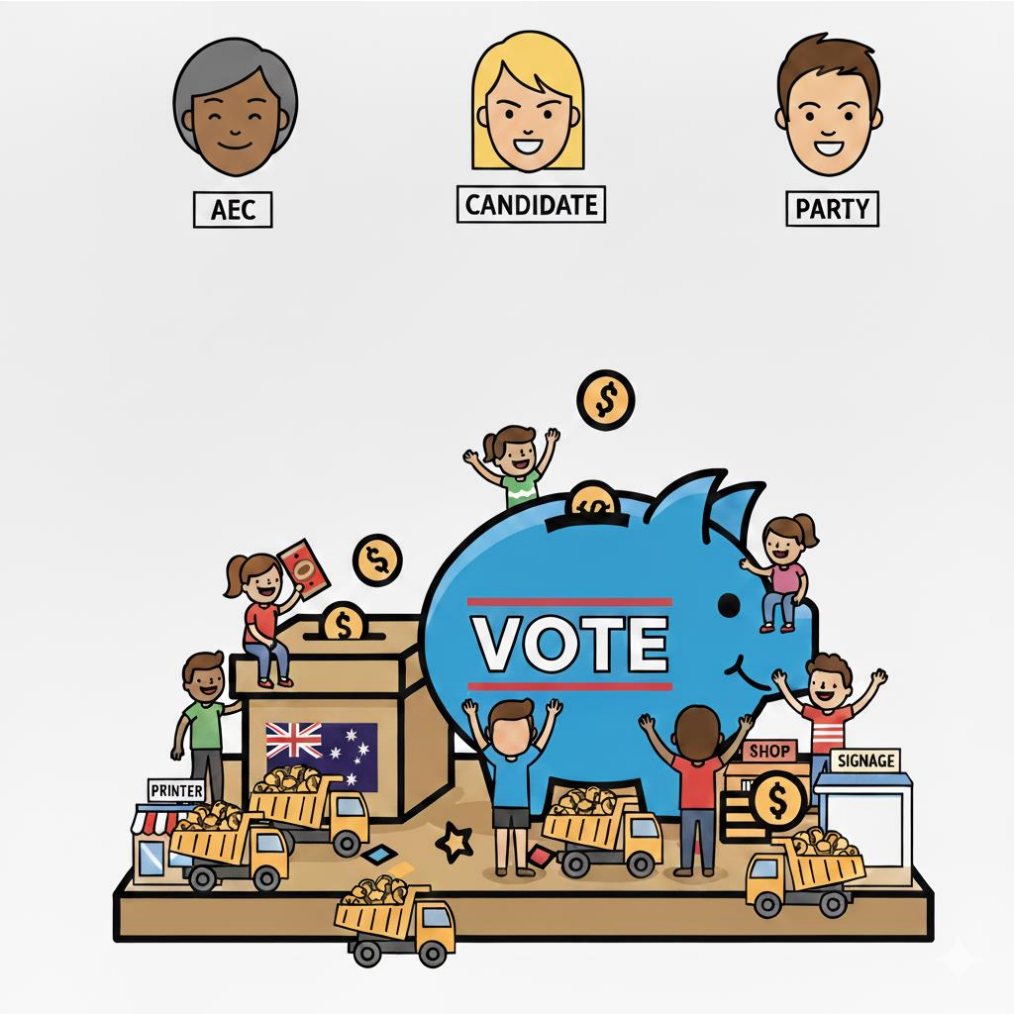
Any additional expenditure over and above this would be the responsibility of the candidate or party. I believe that public funding for Bonner, for example, could be reduced to less than $10,000

[14] *https://www.theguardian.com/australia-news/2022/apr/29/one-nation-candidate-malcolm-heffernan-accused-of-running-for-two-parties-nsw-seat-banks-wa-brand*
[15] *https://www.ecq.qld.gov.au/ data/assets/pdf file/0018/7092/LG-Fact-sheet-5-Information-for-groups-of-candidates.pdf*
[16] https://www.aec.gov.au/media/2022/12-21.htm

per candidate, or a total of $80,000. That's a significant reduction compared an estimated $293,308. Since the public funding component is directly supplied by the AEC it also reduces the administrative and reporting overhead for campaigns.

The counter to this is that candidates may be run as dummy candidates by another candidate solely for vote harvesting or to damage their rivals. It's not entirely unknown for this to happen and there would have to be some serious legal sanctions to discourage this activity. However this activity would obviously fall under group campaign activities.

An alternative process



- Immediately after the previous Federal election has concluded the AEC calls for tenders for the production of those items identified as publicly funded. These tenders will cover regional zones that are no larger than the entirety of one State.
- Once the candidate nomination form has been lodged, a dedicated, segmented bank account will be created by the AEC. This should be a relatively fluid process.
- Registered political parties may lodge an application without a candidate in place in order to accept campaign contributions in that electorate. This also applies to sitting Members and Senators.
- Candidate nomination forms and Party nomination forms may be lodged at any time after the last possible date for a challenge to the result of the previous election has passed.
- Upon the creation of the account the AEC will create a nominal entry to cover the public funding contribution. This funding will not be directly available for use by the candidate, the party or any agents.
- There will be no additional public funding available as part of the electoral process.
- By-elections will create a separate election event for the purposes of funding.
- Donors and suppliers will be required to register for an account. They will be required to acknowledge that they are not an excluded entity. This also applies to donations in kind.
- Registered entities and individuals may be subject to challenge.
- The value of normal volunteer participation has no financial value for the purposes of any determination, but volunteers may not participate if they identify as being an excluded entity.

- For the purposes of electoral funding, donors will not be permitted to donate directly to the candidate. Donations must be made directly to the segmented account through an electronic transfer only.
- That donation will be published immediately to the AEC website as part of the automatic integrity process.
- The candidate, agent or party will issue a purchase order from their preferred supplier for any additional material, under agreed terms.
- Purchase orders will not be able to be fulfilled where current funds are insufficient.
- Upon delivery of material, or other agreed events, funds shall be released from the account to the supplier.
- The AEC, Candidate and Party Agent shall have real-time oversight of all campaign finance. Additional oversight-only accounts may also be created.
- Although donations will be visible immediately, expenditure reports will only be available once reconciled at the conclusion of the election process.
- The AEC may request further information from suppliers, candidates, parties or their agents if any transactions are flagged.
- Questionable transactions may require further scrutiny, repayment, a fine or additional action depending on severity.

Case Studies

Angela is a sitting Tasmanian senator representing the Socialist Party in Federal Parliament. As a sitting senator she already has an AEC campaign account that maintains continuity from her previous election. There is no change required unless she retires or dies - in which case control of the account passes to her party's registered agent. If she resigns from her existing party the account transfers with her, subject to any clawback arrangements with her previous party.

While she continues with her current party she is free to raise funds and spend money on her own campaign. She may not donate funds to other campaign accounts directly, instead she can fundraise to provide donations between donors and other candidates. As a candidate for the forthcoming election she also receives public funding that covers basic expenditure as a senator.

Graham is a member of the Building A Better Australia Party, a minor political party with elected members in four states. He decides to nominate for preselection to be BABA's candidate in Thunderbolt at the next Federal election and is successful. Because BABA is a registered political organisation they have already nominated prior to selecting a candidate. This has allowed fundraising to take place and various media releases to be issued on behalf of the party. A segment account has been setup by the AEC and access has been granted to BABAs State Secretary.

After Graham has been formally declared as the candidate he is added to the AEC account. The account already has a public funding declaration from the AEC to cover election basics that is not directly accessible to Graham or his campaign team. However he can start preparing corflute artwork and basic layouts for how-to-vote cards and any publically funded printed and social media.

The account also contains funding from events and external donations made prior to Graham's official endorsement.

June notices a local Facebook post asking for people interested in standing for Parliament as a Genuine Grassroots Candidate for the electorate of Kelly. The Genuine Grassroots in Kelly are not registered as a political party, but the AEC defines them as a Group aligned with the Genuine Grassroots Movement in Byrne, Pearson, Jackey and Bugg. June attends a discussion with local people and significant donors who provide campaign structure.

As the GGM is not registered as a political party they are not permitted to operate an AEC account until the candidate is chosen. The GGM executive informs June that she would make a wonderful local candidate and the GGM will support her.

She lodges a nomination form with the AEC and is given oversight of the account together with her chosen agent. Oversight is not automatically granted to the Group leadership or donors. Corflutes are printed using the public funding component in her campaign account and some social media advertising begins using the same funding.

Additional funding from corporate donors also flows into the account and expenditures are made from those donations.

Bruce has been working for a local community group in the electorate of Moonlight which has been affected by changes to Federal government funding. After a heated argument with his local Member, Bruce decides to publicise the issue by standing as an independent candidate. Bruce has not been politically active before but a number of friends and colleagues encourage him to do this.

As the election is only four months away Bruce lodges his nomination and receives his AEC account. This allows him to arrange corflutes and some flyers to be distributed locally. His friend Bazza helps with the photography and design. As this is not work that normally forms part of Bazza's professional life it is regarded as a voluntary contribution and not treated as a donation-in-kind.

As Bruce is otherwise completely self-funded the amount supplied through the AEC is almost the entirety of the campaign budget. The AEC does provide some advice about what constitutes legitimate electoral expenditure as part of the candidate funding hotline and website. Those formal responses would constitute a defence in the event that any issues arise.

Bruce gets 3.11 percent of the vote. Under the previous guidelines public funding would not be granted, under the new funding guidelines he would get sufficient funding to participate as a candidate. Because the public funding contribution is spent by the AEC on Bruce's behalf the opportunity to exploit the system is reduced.

Ongoing threats of interference in our electoral system

Democracy is inherently fragile. It's not the natural state of mankind and there is a constant, relentless pressure to abandon it and slip back into compromise. Even the greatest democracies can have their dark ages and Australia is no different.

Foreign

Our biggest challenge challenges come from foreign powers, either state actors or individual attacks. The Australian Signals Directorate provides a regular review of practices to reduce cyber attacks[17] as well as updates on specific issues.[18] As noted in the 2024-25 Report *"…state-sponsored cyber actors targeted Australian networks, and they continue to present an active and evolving cyber threat to Australia. State-sponsored cyber actors conduct operations to serve political and military objectives, including cyber espionage, malign influence, interference and coercion, or to pre-position for disruptive and destructive cyber effects in the event of crisis or conflict."*

Our electoral system, Parliament and individual politicians are not immune from these ongoing challenges.

Removing opportunities for foreign influence, particularly when it comes to funding and donations, is an important first step.

Domestic

We are also facing challenges from home-grown disruption, sometimes with imported ideologies and sometimes bringing their own particular madness to the table. The rise of the Sovereign Citizen movement is of particular concern because their belief systems are entrenched and their worldview often overlaps with the election process.

I have heard just about all of the variations of the need to bring a pen to the voting booth because "*the government changes your vote if you fill it out in pencil".* The easiest response to that is to invite them to attend as a scrutineer and let them realise that the mind-numbing process involved doesn't really provide the opportunity to alter the election that they thought it would.

During the 2022 election we had "election watchers" turn up at a booth in the Griffith electorate and I took the opportunity to provide a commentary on the process. After two hours they had reached the conclusion that most of what they had been told was inaccurate. Perhaps if the AEC could reach out to more people with this mindset and invite them to attend we could limit the misinformation.

Education is a good disinfectant.

[17] *https://www.cyber.gov.au/sites/default/files/2025-09/Information%20security%20manual%20%28September%202025%29.pdf*
[18] *https://www.cyber.gov.au/about-us/view-all-content/reports-and-statistics/annual-cyber-threat-report-2024-2025*

Parliamentary changes

I believe that Parliament, its rules and processes should be open to review and change. Just because something worked a century ago doesn't mean its fit for purpose now. Conversely, change for the sake of change is not a sensible way to run a democracy.

Parliamentary terms, fixed terms and the number of elected representatives

Many of the states have moved to fixed four year terms and making those changes would resolve the issue of overlapping election cycles, as will happen in Queensland in 2028.

Australia's population is growing, and the last time Parliament was enlarged was in 1983. So should we just increase the number of elected Members?

And where does Australian representation sit with other comparable countries on a per capita basis?

Country	Population [19]	Upper House	Per capita	Lower House	Per capita
Australia	27,786,998	76	365,618	150	185,246
Canada	40,240,141	105	383,239	343	117,318
United Kingdom	69,674,244	828	84,147	650	107,191
United States of America	347,826,710	100	3,478,267	435	799,601

Most Australians would be comfortable with fixed four-year terms for Members in a moderately expanded House. Increasing the size of the House of Representatives would also shrink the geographic area of some of the over-sized remote electorates.

At this point you run into two problems –

1) *s.24 "The House of Representatives shall be composed of members directly chosen by the people of the Commonwealth, and the number of such members shall be, as nearly as practicable, twice the number of the senators."; and*
2) *s.128 "This Constitution shall not be altered except in the following manner:-*
   The proposed law for the alteration thereof must be passed by an absolute majority of each House of the Parliament, and not less than two nor more than six months after its passage through both Houses the proposed law shall be submitted in each State and Territory to the electors qualified to vote for the election of members of the House of Representatives…
   … And if in a majority of the States a majority of the electors voting approve the proposed law, and if a majority of all the electors voting also approve the proposed law, it shall be presented to the Governor - General for the Queen's assent.

In order to increase the number of Members of the Lower House, first you need to increase the number of Senators. The 1967 referendum that passed the inclusion of Aboriginal and Torres Strait Island people in the Census and granted Parliament the right to make laws for them also comprehensively defeated a change that would have enabled the House of Representatives to be expanded without an increase in the number of Senators. It was overwhelmingly defeated, only passing in New South Wales.[20]

The likelihood of successfully making all three changes at once is so miniscule as to be ignored, even with bipartisan support.

The relevant sections of the Constitution are

1) **s.7 The Senate**, *"…Until the Parliament otherwise provides there shall be six senators for each Original State. The Parliament may make laws increasing or diminishing the number of senators for each State, but so that equal representation of the several Original States shall be maintained and that no Original State shall have less than six senators."*;

[19] *https://www.worldometers.info/world-population/*
[20] *https://www.aph.gov.au/About_Parliament/Senate/Publications_and_resources/Papers_and_research/Papers_on_Parliament_and_other_resources/Papers_on_Parliament/68/The_Defeated_1967_Nexus_Referendum*

2) **s.27 Alteration of number of members**, "*Subject to this Constitution the Parliament may make laws for increasing or diminishing the number of the members of the House of Representatives.*"; and
3) **s.122 Government of territories**, "*The Parliament may make laws for the government of any territory … and may allow the representation of such territory in either House of the Parliament to the extent and on the terms which it thinks fit.*"

As the population of the Australian Capital Territory approaches that of Tasmania it becomes increasingly difficult to justify the disparity in representation. The Northern Territory faces a "chicken and egg" dilemma – without representation Parliament makes decisions that impact the area, often negatively, leading to a relative drop in population, which further dilutes their representation.

The problem arises with the Senate and the difficulty of gathering public support around guaranteed eight-year terms in the Upper House with no ability to deal with elected Senators who resign from their Party immediately after they are sworn in.

Here are some ways to blunt the potential arguments against expansion:-

1) Reduce Senate terms to four years, in line with the terms of Territory Senators;
2) Keep the Senate term at eight years, but limit the number of terms a Senator can serve to two; or
3) As the role of Senators is to act as a House of Review and represent their State, one option is to align the term of Senators with State elections, providing a continuous review process. S.9 of the Constitution, *Method of election of Senators*, not only allows this practice but actively encourages it. S.394 of the Commonwealth Electoral Act 1918 would have to be amended or removed as it currently does not permit a State or Territory election to be held on the same day as a Senate or General election.
   "*(1) On the day appointed as polling day for an election of the Senate or a general election of the House of Representatives, no election, referendum or vote of the electors of a State or Territory or part of a State or Territory may, without the authority of the Governor - General, be held or taken under a law of the State or Territory.*
   (2) On the day appointed as polling day for an election of the Senate or a general election of the House of Representatives, no election, referendum or vote of the electors of Norfolk Island may, without the authority of the Governor - General, be held or taken under a law in force in Norfolk Island."

The partisan impact of expanding the Parliament

There has been some commentary about the expansion of Parliament and whether it favours a particular political party. That's a novel view, given that the majority of elections have been won by the party with the most votes, with the exception of 1998.

Year	Government	ALP TPP Vote %	Coalition TPP Vote %
2025	ALP	55.22%	44.78%
2022	ALP	52.13%	47.87%
2019	LNP	48.47%	51.53%
2016	LNP	49.64%	50.36%
2013	LNP	46.51%	53.49%
2010	ALP	50.12%	49.88%
2007	ALP	52.70%	47.30%
2004	LNP	47.26%	52.74%
2001	LNP	48.97%	51.03%
1998	LNP	50.98%	49.02%
1996	LNP	46.37%	53.63%
1993	ALP	51.44%	48.56%

The election of 1998 was different because of where the votes occurred. Historically Labor (and particularly Green) votes have been more concentrated into particular areas, and in general have been more demographically cohesive. This makes it easier to win a particular seat from a low general base vote, but it also creates a problem where it over-performs in a particular geographic area. Any vote over the minimum required to win the seat – 50% +1 – is a "wasted" vote.

If these surplus votes were in other areas they may change the result, which is why "where" is much more important than counting "who".

Which brings me back to my first point - adding extra seats does not increase the number of voters, it just distributes them amongst more seats. Since Australian electorates are not homogenous, but are "lumpy", redistributions have a greater impact than simply increasing the number of seats does.

As we're looking at the percentage of voters in each electorate, and not the number of electors, increasing the number of seats doesn't really make a difference.

EXCEPT, and this is a minor exception, it may slightly increase independent and minor party representation if their support is geographically concentrated and that aligns with the Federal electorate. This distillation may result in a candidate having enough support to reach a majority, either through a significant base vote or a favourable preference flow.

Or sometimes the stars align and serendipity follows.

Increasing the number of Senators has a more dramatic effect. Lowering the quota required to elect a Senator reduces the hurdles for minor party candidates. A quota of 14.28% may be too much for a minor party to jump; a quota of 10% may put a Senate spot in reach. We see this in double-dissolution elections with a reduced Senate quota. However it means that other candidates, particularly from major parties, also have the barriers lowered. Two quotas and a bit extra that may have fallen short of electing a third candidate will mean that a third Senate seat will now be easier to achieve.

There have been many public comments about making the number of seats equal to the percentage of the vote – if you get 10 percent of the total vote you should get 15 seats.

Unfortunately that displays a lack of understanding about the way elections, and mathematics, work.

Because seat distribution in Australia follows a normal curve most of the seats cluster around the mean and the further outside that point the less representative the electorate is. In the 2025 election there were 46 seats which had a margin of less than 6 percent two-candidate preferred.

Small swings have outsize impacts, but in an electorate where one candidate gets 40 percent and the next nearest gets 30 percent, the candidate on 10 percent doesn't become the winner because "it's fairer".

Matters that are supplemental to the current terms of reference of the Inquiry

There are a number of issues that have been raised in previous Inquiries and have not been resolved. In some cases they were put in the "too-hard" basket, in some cases they were politically difficult. This does not reduce their importance or mitigate the need for open discussion.

Eligibility of candidates

As the AEC has indicated that they do not have the time or resources to investigate every nomination I suggest that candidates should not be permitted to stand with incomplete nominations and that there should be significant penalties for those candidates who nominate and are aware that they are not eligible. My suggestion is that the AEC advise candidates that they have 24 hours to "cure" their nomination subject to cutoff times. This also implies that candidates should lodge their nominations prior to 24 hours before the close of nominations.

In the 2025 election there were five candidates who were ineligible to stand for election. This is an ongoing problem and, despite the view of the High Court in Re Wood, the practical effect of allowing unqualified candidates to stand is that it does have an effect on the vote, either by removing potential voters or by the allocation of preferences.[21]

However this does not fix the fundamental problem with s.44 and ignoring it won't make it go away. As long as the legal environment is subject to change there will be no guarantee of certainty for future Parliaments.

There are two ways to repair this problem. The first is to conduct a referendum to amend the Constitution, a process which is both expensive and uncertain. The other option is to patch up the holes in much the same way they have been created – administrative creep and judicial interpretation.

I believe that s.44 (ii) (treason and imprisonment) and s.44 (iii) (bankruptcy) can be left as is. S.44 (v) (direct or pecuniary interest with the Commonwealth) can be removed at some future time as the unlawful activity it describes would be covered by existing criminal law.

That leaves s.44 (i) (foreign powers) and s.44 (iv) (office of profit). The first could be dealt with by candidates signing a renunciation of foreign citizenship at the time of their nomination and completed documents sent to every single country to determine if there are any potential citizens amongst them. A general statement that "we've done all we can" would cover those countries that don't allow renunciation, have citizenship conferred through several generations or allow the idea of imposed citizenship as a form of mischief-making.

The original purpose of s.44 (iv) of the Constitution was to prevent those with important statutory positions from leveraging those offices for political gain. A side effect has been that positions with absolutely no potential for benefit have been adversely affected, such as teachers (Sykes v Cleary) and air force officers (Kelly and Court of Disputed Returns). The position of Assistant Ministers occupies a very uncertain space simply because it hasn't gone to court yet.

The Senate Standing Committee on Legal and Constitutional Affairs raised this in their 1981 Inquiry into *The Constitutional Qualifications of Members of Parliament*. [22]

The Constitution disqualifies any person who '*holds any office of profit under the Crown*' from being chosen or sitting as a Member of Parliament. The Constitution goes on to provide that this restriction does not apply '*to the office of any of the Queen's Ministers of State for the Commonwealth*' who of necessity sit as Members of Parliament. There is no exemption or ability to authorise payment for a Member of Parliament who is not a Minister performing the duties of Assistant Minister or similarly role. *To be a Minister, and therefore constitutionally eligible to receive a ministerial salary of office, a*

[21] *https://www.austlii.edu.au/au/journals/CanLawRw/2019/8.pdf*
[22] *www.aph.gov.au/~/media/wopapub/senate/committee/legcon_ctte/completed_inquiries/pre1996/constitutional/06ch6_pdf.ashx*

Member, by definition, must administer a Department of State of the Commonwealth. Parliamentary Secretaries have been able to receive salaries since they became legally defined as Ministers of State in 2000, however that doesn't negate the Constitution.

Queensland resolved the nebulous position of Assistant Ministers with the revision of s.24 of the Queensland Constitution.[23] This adds a difficult precedent in s.24 (3), with "*To remove any doubt, it is declared that an Assistant Minister is not a Minister of the State.*" Various Federal Governments have introduced increasingly torturous positions on the legitimacy of Assistant Ministers, Parliamentary Secretaries and Honourary Ministers. Whatever the title, the role remains the same.

Most of the public service positions have been "worked around" with candidates allowed to resign in order to run with the option of being rehired into the same position without prejudice if they are unsuccessful.

S.44 (iv) could be addressed by Parliament defining the term "Office of Profit" by legislation and incorporating specific offices by regulation. Obviously those positions would include the Governor-General and Governors, Chief of the Defence Force, members of the Reserve Bank Board, members of the Board of the Future Fund, members of the ABC Board, serving judges and magistrates and, I'm sure, many others.

How Senate votes are counted

I'd like to express my thanks to the Committee Secretariat for pointing the way towards the *Senate Ballot Paper Study 2016 on Exhaustion*. [24]

While I'm familiar with the Weighted and Unweighted Inclusive Gregory systems, I believe that there are times when they don't achieve their goal of "one vote, one value". I'd like to propose a slightly different methodology as well as fixing a problem with the current Senate ballot paper.

So let's start with that. Apart from the current AEC guidelines and the Senate Ballot Paper Design Guidelines,[25] there are no binding constraints. We have a physical problem at the moment, where the size of the ballot paper is not only unwieldly, but approaching the point where it cannot be physically produced in its current format. In the past the AEC has even offered magnifying sheets to enable voters to read the small type.

As the votes above-the-line and below-the-line are mutually exclusive (with a rate of between 94 and 98 percent ATL, except for the Tasmanian outlier) [26] there is a good argument to produce two Senate ballot papers, an above-the-line option and a below-the-line option for those taking the difficult path. It would add a small amount of time to the voting process with the Returning Officer, balanced against a slightly faster time to complete it AND count it.

It would lead to less confusion and eliminate those misvotes for electors who vote both above and below the line. It also allows greater design efficiency as the ATL no longer needs to line up vertically with the BTL. This also means that the ballot papers can be more easily identified and sorted during the count and the ATL votes can be counted first.

Firstly, ALL informal ballot papers are removed and, subject to challenge, take no further part in the process. So how do we distribute the votes? I'd argue, particularly for the ATL votes, once a ballot has helped elect a candidate that ballot should no longer be distributed. In practice that would mean calculating the primary votes first, but starting with the BTL votes which distinguish between members of the same party but may be in a different order. Once all of the primary BTL votes are distributed, then the ATL votes are added to each candidate in order until that candidate reaches a quota. At that point those ballot papers are removed from the continuing count as they have achieved their goal of electing a candidate. ATL votes are then distributed to the next candidates

[23] *https://www.legislation.qld.gov.au/view/html/inforce/current/act-2001-080*
[24] *https://www.aec.gov.au/About_AEC/research/files/sbps-exhaustion.pdf*
[25] *https://aceproject.org/main/samples/po/pow_020.pdf*
[26] *https://www.aec.gov.au/about_aec/research/files/sbps-atl-and-btl-voting.pdf*

until a further quota has been achieved and the process continues. At this point three or four candidates should have achieved a quota and been elected.

This also means changes the definition of quota, from *(Number of formal ballot papers / (Number of senators to be elected + 1)) rounded down + 1* to *((Number of formal ballot papers+number of exhausted ballot papers)/(Number of senators to be elected + 1)) rounded down + 1*. Effectively the quota becomes fixed once informal votes are removed, instead of being adjusted with each iteration of exhausted votes.

We are now left with those who have not reached a quota. They are successively eliminated at each stage and their votes are distributed to candidates who remain. If no candidates remain to distribute those votes to then those votes exhaust. Votes are distributed until all remaining positions are filled. What it means is that 1) groups that elect a candidate do not distribute their excess ATL votes to other groups; and 2) there may be multiple candidates elected without meeting a full quota.

Summary of proposed changes

1. Limit booth workers to only those appointed by a candidate and reduce the number to a maximum of two per entry point, not including candidates.
2. Campaigning within 100 metres of the polling place can only take place with appointed representatives of candidates.
3. The role of the AEC Officer-in-charge at each booth should be recognised by law enforcement during the period of the election and immediate action should form part of that response.
4. Disability access should be the default for all polling places, with limited access being the exception.
5. The AEC should prioritise regional and remote booths when it comes to staffing and operations.
6. All prepoll booths should commence two weeks prior to the election day.
7. Reporting on the results of the election should not be permitted until all polling booths have closed.
8. Enrolment at Declared Institutions should be updated every six months and at least three months before the anticipated election date and the AEC should encourage those facilities to identify new electors on arrival.
9. The AEC should develop guidelines for consistent assessment of impairment in concert with stakeholders.
10. The future of postal voting should be assessed by the AEC.
11. Third-party Postal Voting Applications should be removed as an option entirely, potentially by legislation or by the AEC asserting ownership of the intellectual property.
12. The AEC should develop the framework for digital voting and lead future discussion.
13. Registration of the colours, fonts, logos and other identifying features of a political party, as well as other significant organisations, should be granted exclusive control for the purposes of an election.
14. Only those authorised to do so can use the likeness of any person for the purposes of an election.
15. All election material, including but not limited to corflutes, print and digital advertising, signs, clothing, vehicle wraps, how-to-vote information, direct mail, emails and phone messaging, will be required to digitally lodge the material through the AEC, complete the necessary details and receive an authorisation lodgement identifier. This identifier must form part of the display of any political material. Any material circulated without an authorisation during the election period will be regarded as unlawful and subject to penalties.
16. A collated copy of all how-to-vote recommendations by candidates should be placed in a prominent position within each polling booth to provide a neutral recommendation for all voters.
17. Members of a group, whether a community organisation, union, superannuation fund or listed company, shall have the right to determine the amount and destination of any transfer of assets to political organisations. Organisations must first propose the size and destination of any asset transfer, and members must approve their contribution. The absence of approval shall be taken as the withholding of approval for the transfer.
18. Political donations shall not be accepted by political parties, candidates or other political entities from donors that do not exist at arm's length from the political process. Specifically – those on the lobbyist register (and to remove all doubt, those who hold a Parliamentary pass tied to that role); organisations granted a social license by government , such as gambling companies; organisations that have engaged in policy discussions with Ministers or specified public servants within the current term of government; those convicted of certain disqualifying offences and undischarged bankrupts; those who are in a current significant

contractual relationship with the government or are granted a significant contract within the following two years; those representing a foreign government or any associated entity, whether disclosed or not; and those who have not completed the process outlined in the previous item.

19. Donation disclosure should be lowered to $100 to balance the demands of transparency and administrative overhead.
20. Public funding should be available to all candidates based on the minimum required to participate effectively for any candidate. The delivery of basic funding outcomes should fall within the responsibility of the AEC to reduce costs and increase transparency.
21. Donations should require verified registration for donors, candidates, political organisations and suppliers. A responsible external entity, with oversight by the AEC, should provide a platform to accept donations and pay suppliers. It should allow transparent oversight for the AEC, candidates and political organisations, together with providing real-time public notification of donations.
22. The AEC may designate and differentiate between candidates as members of a political party, members of a group or those standing alone.
23. The term “Independent” may only be used on election material for those not part of a group or political party.
24. Planning for targeted disruption of our electoral system by foreign or domestic attacks should be prioritised by the AEC and supported by other strategic partners.
25. The Joint Standing Committee on Electoral Matters should commence an inquiry with the sole reference to address future changes to Parliament, including expansion, term length and the desirability of fixed terms. This would be more suitably addressed as a separate topic and not bundled with this previous election inquiry.
26. The determination of candidate eligibility to stand for Parliament under s.44 should be prioritised.
27. The option of providing Senate ballot papers as separate documents for above and below the line voting should be examined.
28. Convening a formal, overarching Constitutional Convention should be discussed, designed to maximise participation and covering all aspects of our founding document and a robust discussion on which sections are fit for purpose.